

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL
APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE
ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-
NEVER-OCCURRED**

Never-Filed Opposition to Stay of Mandate

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** June 26, 2026

DOE opposes Open Grid’s request to stay mandate pending a contemplated petition for certiorari. The motion identifies disagreements the panel considered in the merits briefs and rehearing petition, but it does not establish a substantial question or good cause under Federal Rule of Appellate Procedure 41(d)(1).

The counterfactual opinion applies familiar rules to a deliberately corrected record. It preserves separate elements for 7(E), 7(F), segregability, and judicial access. It does not treat the worksheet, a sealed label, or an access mechanism as self-proving. The proposed petition would seek another assessment of that application without identifying a conflict requiring further review.

The June 22 rehearing-denial order already supplies a definite, expressly shortened mandate date. DOE asks the Court to allow that directed sequence to operate. This opposition takes no position on a petition that has not been filed beyond the limited showing required for a stay.

Governing Standard and Timing

Rule 41(d)(1) places two burdens on the movant: the expected certiorari petition must present a substantial question, and there must be good cause for delaying mandate. A stated intention to seek review is insufficient. Relief is exceptional because the court of appeals has completed merits and rehearing review.

The opinion and judgment were entered May 29. Open Grid's June 12 rehearing petition was timely within the forty-five-day period otherwise applicable when DOE is a party. In denying rehearing on June 22, the Court shortened the remaining Rule 40 period to that date and directed June 29 issuance under Rule 41(b).

Open Grid filed its stay motion June 25. That promptness avoids a timeliness objection but does not satisfy either substantive requirement or amount to a merits stay. Rule 41's later-of calculation will account for the Court's disposition of the motion, and the Court retains authority to set a different lawful issuance time by order.

DOE submits this expedited response so the panel may decide the request on a complete public record. No sealed material is necessary to resolve it.

No Substantial Exemption Question

The opinion's 7(E) ruling is expressly confined to nonpublic predicates, response ordering, implementation relations, and supported guideline values. It excludes independent titles, approval facts, ownership, revision history, and general administration. That content-sensitive boundary follows the governing distinction between a known concept and its nonpublic implementation.

The corrected 7(F) proof begins with segment review and groups only four functions after that examination. Each group has a distinct disclosure-to-danger explanation. Neutral captions, broad coordination language, and safety-adjacent vocabulary remain outside the category. Dual markings require separate reasons.

Open Grid proposes to ask whether a reviewing court can verify those correlations without publishing the withheld relation. The panel did so through safe functional descriptions, adversarial public briefs, and authorized controlled comparison. The motion identifies no legal rule requiring an opinion to reproduce every worksheet entry.

This is record-bound disagreement about the amount of explanation, not a substantial unresolved question about the elements of either exemption.

No Substantial Segregability Question

The corrected premise supplies more than a claim that every page was read. Reviewers evaluated each segment in context, recorded whether visible language retained independent meaning, considered whether position disclosed a protected relation, and tested neutral headings and coordination prose separately.

The resulting supplemental release included seventeen passages on eleven existing production images. Six images received two passages, while five received one. The released subjects demonstrate that the protocol recognized administration rather than presuming that an operational record was indivisible.

Residual explanations address each retained segment and proposed fragment in the three wholly withheld records. They distinguish relational placement from a remnant lacking informational value. The panel evaluated that account and found that Open Grid identified no omitted meaningful portion within the corrected premise.

The contemplated petition would ask another court to demand more opinion text about evidence already reviewed. It does not identify a statutory conflict or a retained passage outside the worksheet. That request does not make the segregation question substantial for purposes of withholding mandate.

Judicial Access Does Not Support a Stay

The corrected access ruling does not rely on technological safeguards as its legal justification. It first identifies the governing access interests, gives public notice, examines each controlled passage, considers alternatives, and explains why authentic relational context requires limited closure. Only then do verified grants and revocation enforce the selected boundary.

Public counterparts provide the complete history, authorities, arguments, and requested relief. The controlled form is limited to inert substitutes and necessary relational context. Restrictions end thirty days after mandate unless a court enters new findings for a particular passage. The docket as a whole remains open.

Open Grid's motion accepts those features and asks whether representative reasoning can support coherent passage groups. The opinion answers yes after determining that the groups share the protected relation. *Company Doe* requires particular findings, not repetitive wording detached from function.

Beginning the finite period does not threaten public access. It moves the restrictions toward expiration. A stay would postpone that endpoint and therefore is not necessary to preserve the public's position.

Good Cause Is Absent

Mandate requires no disruptive district proceeding. The judgment affirms and orders no remand. Existing public and controlled projections can continue during the ordinary transmission process, and the limited access restrictions already contain their own reconsideration rule.

Open Grid suggests that expiration might overlap later review. That possibility is speculative and does not establish harm. If a particular closure question remains live, a party can seek an appropriately supported order. Delaying mandate merely postpones the thirty-day endpoint and continued public availability is not impaired by issuance.

DOE acknowledges the motion was prepared promptly. Diligence is relevant but does not replace a substantial question or concrete reason for delay. Nearly every disappointed litigant could promise a bounded petition and status reports. Rule 41 requires more before the prevailing judgment is withheld.

No bond issue drives DOE's position. The deficiency is substantive: the motion does not show why this corrected, fully affirmed record should remain in appellate suspension.

Requested Disposition and Certification

DOE respectfully requests denial of the motion to stay mandate. If the Court adjusts the issuance date to complete consideration of the expedited papers, it should state the resulting date expressly so no participant infers an unstated extension. DOE seeks no acceleration beyond what the Court lawfully directs.

Denial would leave intact the opinion's narrow merits boundaries and the existing access order. It would not decide any certiorari petition, because none has been filed. It would not reveal a controlled counterpart or change the twelve-record and 200-source-page universe.

Corin Pell certifies service on Tamsin Roe and Leo Marr through the isolated exercise system on June 26, 2026. This seven-page opposition was prepared entirely from public branch materials and contains no controlled label or authentic operational content.

The filing never appeared on the actual docket and predicts no order. Judges Vale, Quill, and Reed remain free to grant, deny, condition, or otherwise resolve the motion within the authority supplied by Rule 41.